

2:00 PM

LINE 1

20-CIV-03986

ROBERT HARLOW, JR VS COVENANT AVIATION SECURITY, LLC

ROBERT HARLOW
COVENANT AVIATION SECURITY, LLC

EDWIN AIWAZIAN
COLLIN D. COOK

COMPLIANCE HEARING

TENTATIVE RULING:

On July 31, 2026, Taylor Mitzner of Phoenix Settlement Administrators (Phoenix), the settlement administrator, filed a further supplemental declaration stating that all checks to additional class members had been mailed, the time to cash checks has expired, and Phoenix mailed the unclaimed funds in the amount of \$232,666.25 to Legal Aid at Work (for use in San Mateo County).

Thus, there is nothing more to be done in this case and the court orders the case closed.

If the tentative ruling is uncontested, it shall become the order of the court without the need for a formal order.

2:00 PM

LINE 2

21-CIV-06333 FLOWRITE, INC. VS. 801 FASSLER, LLC, ET AL.

FLOWRITE, INC.
801 FASSLER, LLC

BRENDAN K OZANNE
ROBERT M GAGLIASSO

AK CONSTRUCTION ENTERPRISES, INC.'S MOTION FOR SUMMARY JUDGEMENT OR, IN THE ALTERNATIVE, SUMMARY ADJUDICATION AGAINST FLOWRITE, INC. PURSUANT TO C.C.P. §437c

TENTATIVE RULING:

For the reasons stated below, Defendant AK Construction Enterprises, Inc.'s ("AK" or "AK Construction") Motion for Summary Judgment ("MSJ"), filed May 14, 2026, is DENIED. (Code Civ. Proc., § 437c.)

AK Construction's alternative Motion for Summary Adjudication ("MSA") is GRANTED as to the Third Cause of Action (foreclosure of Mechanic's Lien) and the Fifth Cause of Action (implied covenant of good faith and fair dealing).

AK Construction's May 14, 2026 Request for Judicial Notice ("RJN") is GRANTED. (Evid. Code § 452(c) [recorded documents]; § 452(d) [court-filed documents].) The Court takes judicial notice of each document's contents and filing/recording dates, but does not take judicial notice of the truth of statements in the documents.

Defendant AK Construction's July 31, 2026 "Objections to Statements by Flowrite" are OVERRULED. Most of these "objections" consist of objections to argument rather than objections to evidence. The objections to evidence (on page 4) go to weight, not admissibility.

The parties dispute whether Flowrite served, or properly served, the Opposition papers on July 21, 2026. AK Construction's Reply brief argues that the Opposition papers were not served, and that AK's counsel obtained the Opposition papers from the Court's docket. Flowrite, conversely, contends that the Opposition papers were electronically served on AK Construction on July 21, 2026 via One Legal. (Aug. 3, 2026 Shaffer Decl.) The Court considers the Opposition. AK's Reply papers address the substance of the Opposition papers, and AK has not identified any meaningful prejudice from the claimed lack of service. If AK can identify actual prejudice then the Court will consider continuing the motion to allow the issue to be addressed. If AK wants additional briefing, it shall properly contest the tentative ruling and make an offer of proof.

BACKGROUND

Defendant/Cross-Complainant 801 FASSLER, LLC ("Fassler") is the owner and developer of a townhome development project in Pacifica, California ("Property"). (UMF 1.) AK Construction contracted with Fassler to be the general contractor for the Project. (UMF 2.) In February 2021,
